



Overseas Development and Service Act 1965

1965 CHAPTER 38

An Act to amend the Colonial Development and Welfare Act 1959 and to authorise the Minister of Overseas Development to meet expenses incurred in connection with the employment of persons in overseas territories, or in respect of compensation paid to persons who are or have been so employed. [5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Amendments
of Colonial
Development
and Welfare
Act 1959.
1959 c. 71.

1. (1) The Colonial Development and Welfare Act 1959 shall be amended as follows.

(2) The sums to be paid out of money provided by Parliament for the purposes of schemes within the meaning of the Act shall not exceed twenty-five million pounds in any one of the three financial years ending in 1966, 1967 and 1968, and shall not exceed three hundred and ninety million pounds in all (excluding sums so paid before 1st April 1946).

(3) No such scheme shall continue in force after 31st March 1970 except so far as it makes provision for the payment out of money provided by Parliament of pensions, allowances or other benefits in respect of injuries or diseases, or aggravation of diseases, incurred by persons engaged in activities carried on for the purposes of such schemes.

(4) Proposals for loans under section 2 of the Act shall not be approved so that the aggregate amount of such loans exceeds ten million pounds in respect of the proposals approved in any one of the three financial years ending in 1966, 1967 or 1968, or one hundred and twenty-five million pounds in all.

(5) No proposals for loans under section 2 of the Act shall be approved after 31st March 1970, and no money shall be lent under that section after 31st March 1973.

(6) For the purposes of the overall limit in subsection (2) of this section on the sums to be paid out of moneys provided by Parliament for the purposes of schemes there shall be left out of account any sums required by the Secretary of State in the period ending on 1st October 1957 for making payments pursuant to any scheme for the purpose of providing funds required by the Tanganyika Agriculture Corporation for carrying on the undertaking of the Overseas Food Corporation.

(7) It is hereby declared that in the definition of "development programme" in section 2(5) of the Act the reference to the improvement of existing services or enterprises includes a reference to the renewal or replacement of existing services or enterprises.

2.—(1) The Minister of Overseas Development may enter into agreements relating to the employment in public or social services in overseas territories of persons designated at any time by the Minister in accordance with the agreements, being agreements under which the Minister meets, directly or indirectly, expenses—

Power to meet expenses incurred in connection with employment in overseas territories.

(a) in connection with the employment of those persons in accordance with the agreements, or

(b) in respect of compensation paid to those persons,

and may out of moneys provided by Parliament make any payments falling to be made under the agreements.

(2) The agreements may be agreements with the Government of the overseas territory, or with any inter-governmental organisation, or (if the employment is not by or under the Government of the overseas territory, or an inter-governmental organisation) with the authority or other body which is the employer.

(3) No such agreement shall be entered into, and no person shall be designated under such an agreement, except with the consent of the Treasury.

(4) The consent of the Treasury to the designation of any person under such an agreement may be given generally in respect of persons of such descriptions, and subject to such limitations (if any), as may be specified in the consent.

(5) For the purposes of this section a person shall be taken to be employed in public or social services in an overseas territory at any time when—

(a) he is the holder of a public office in an overseas territory, or

- (b) he is employed under the Government of an overseas territory or under any municipal or other local authority in an overseas territory, or
- (c) he is employed in an overseas territory by any inter-governmental authority or organisation, or
- (d) he is employed by any authority, organisation or institution established for public purposes in an overseas territory, including any marketing board, co-operative society or other body providing benefits primarily for a particular section of the public, or
- (e) he is employed (otherwise than by any authority, organisation or institution established as aforesaid) in any service provided, or in any other activities carried on, for public purposes in an overseas territory.

(6) The Minister of Overseas Development may by order apply this section in relation to employment in an overseas territory in a capacity specified in the order as it applies in relation to employment in public or social services in overseas territories.

An order under this subsection—

- (a) may be varied or revoked by a subsequent order, and
- (b) shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

1958 c. 14. (7) In this section “overseas territory” means any territory or country outside the United Kingdom, and references to the Government of an overseas territory shall be construed in accordance with section 7(3) of the Overseas Service Act 1958; and this section applies only to persons serving outside the United Kingdom.

1961 c. 10. (8) The Overseas Service Act 1961 (which is superseded by this section) shall cease to have effect but any agreement, arrangement, consent, designation or other thing made or done or given under or for the purposes of that Act shall have effect as if made, done or given under or for the purposes of this Act.

Citation
and repeals.

3.—(1) This Act may be cited as the Overseas Development and Service Act 1965.

(2) This Act, so far as it amends the Colonial Development and Welfare Act 1959, may be cited together with the Colonial Development and Welfare Acts 1959 and 1963 as the Colonial Development and Welfare Acts 1959 to 1965.

(3) The Acts and instruments mentioned in the Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

SCHEDULE

REPEALS

Chapter or Serial Number	Title	Extent of repeal
7 & 8 Eliz. 2. c. 71.	The Colonial Development and Welfare Act 1959.	Section 4. Section 7.
9 & 10 Eliz. 2. c. 10.	The Overseas Service Act 1961.	The whole Act.
1963 c. 40.	The Commonwealth Develop- ment Act 1963.	Section 2(2) but not so as to affect any limitation relating to the financial year ending in 1965.
S.I. 1964 No. 1849.	The Minister of Overseas Development (No. 1) Order 1964.	In Article 2(1)(b) the words " and the Overseas Ser- vice Act 1961 "